

2025

C 202500099-38

FR 100174/2025

**IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

PRESENTATION FORM

WRIT APPEAL NO.....of 2025

District: Ballari

PRESENTED WITH COURT FEE LABELS AS FOLLOWS

Sl. NO.	Particulars	Court fee affixed on the papers	
		Rs.	P.
1.	On Memorandum of Appeal/Petition Application ...	50	00
2.	On the certified copies of judgment and decree ...		
3.	Memo of Appearance ...		
4.	I.A. No.1/2025 for ...		
5.			
6.		50	00
7.	 Total ...		

Number of copies furnished 2 Sets

Advocate for Petitioner/ Respondent Appellant

Clerk
Office of the Advocate-General
For Karnataka, Dharwad

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Labels as above

Receiving Clerk

Place: Dharwad
Dated: 25.03.2025

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2025

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
And another.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

INDEX

Sl. No.	Particulars	Page Nos.
1.	List of dates and Synopsis.	01-02
2.	Memorandum of Writ Appeal.	03-09
3.	Certified Copy of order in W.P.No.104320/2022, dated 16/11/2022.	10-13
4.	Memorandum of W.P.No.104320/2022 filed by the Respondent/Petitioner.	14-27
5.	Annexure-A , Copy of the Registered Dale Deed Dated 15.11.2011.	28-34
6.	Annexure-B , -Copy of the Order dated 20.07.2015	35-36
7.	Annexure-C , Copy of the Ordinance 2020	37-39
8.	Memo regarding Statement of Objection not filed by State/Respondent.	40
9.	Memo for Appearance.	41
10.	IA No.1/25 for Dispensation of Production of English Translation Copy	42-44
11.	IA No.2/25 for Dispensation of Production of Typed Copy.	45-47
12.	IA No.3/25 for Condonation of Delay.	48-51
13.	IA No.4/25 for Stay.	52-55

Place:Dharwad

Dated: 25.03.2025

(MADANMOHAN. M. KHANNUR)

ADDL., GOVERNMENT ADVOCATE

AND

ADVOCATE FOR APPELLANTS/STATE

**IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH, AT DHARWAD**

WRIT APPEAL NO. _____/2025

IN

W.P No.104380/2022 (KLR-RES)

BETWEEN:

The State of Karnataka
& others.

APPELLANTS

AND:

Milapchand S/o late Jugaraj Jain

RESPONDENT

LIST OF DATES AND SYNOPSIS

Sl. No	Date	Events
1.	18.01.2011	The Petitioner purchased the property bearing Sy. No.13(Part) measuring 1.33 acres situated at Chikkathapur Village in Sandur Taluk, Ballari District.
2.	20.07.2015	The Respondent No.2 passed the order thereby holds that the petitioner had violated Section 79A and B of Karnataka Land Reforsm Act, 1961.
3.	13.07.2020	Amendment to the Act and Section 79 A and B of the Act are omitted with effect from 01.03.1974.

4.	08.09.2022	The Respondent has filed the writ petition No.104380/2022 by the Challenging the Annexure-B.
5.	16.11.2022	The Hon'ble Court has allowed the writ petition. Hence, this present writ appeal.

FACTS OF THE CASE

The Appellants filed present appeal with the above facts and grounds by challenging the order dated 16.11.2022 in WP NO.104380/2022 passed by the Learned Single Judge of this Hon'ble Court, and dismiss the writ petition in the interest of justice and equity.

Place: Dharwad
Date :25.03.2025

(MADANMOHAN M. KHANNUR)
ADDL. GOVT., ADVOCATE &
ADVOCATE FOR APPELLANTS/STATE

srg

**THE HIGH COURT OF KARNATAKA DHARWAD
BENCH AT DHARWAD**

(CIVIL APPELLATE JURISDICTION)

WRIT APPEAL NO._____/2025

IN

W.P.NO.104380/2022 (KLR-RES)

RANK OF THE PARTIES

**WRIT
PETITION**

**WRIT
APPEAL**

BETWEEN:

1. The State Of Karnataka,
Represented by its Secretary,
Department of Revenue,
Bengaluru-560001.

Respondent No.1/Appellant No.1

2. The Assistant Commissioner,
Ballari Division,
Office of the Assistant Commissioner,
Ballari-583101.

Respondent No.2/Appellant No.2

3. The Tahasildar,
Sandur Taluk,
Office of the Tahasildar,
Sandur, District -Ballari-583101.

Respondent No.3/Appellant No.3

AND:

Milapchand S/o Late Jugaraj Jain,
Age: 72 years, Occ: Agriculture and
Business, R/o No.604 'C' Block,
Raheja Park, Magadi Main Road,
Benglauru-560079.

PETITIONER /RESPONDENT

**MEMORANDUM OF WRIT APPEAL UNDER SECTION 4 OF
THE KARNATAKA HIGH COURT ACT, 1961**

The appellants above named most respectfully submit as under;

I. The Addresses of the Appellants/State for the purpose of service of Court Notices, Processes, Summons etc., from this Hon'ble Court is that of its Counsel, Government Advocate, Office of the Advocate General, High Court Circuit Bench Unit, Dharwad.

II. That the address of the Respondent/ Accused for the aforesaid purpose is as stated in the cause title above.

III. That being aggrieved by the order passed by the Learned Single Judge of this Hon'ble Court in W.P.No.104380/2022 by order dated 16.11.2022, the appellants preferring this Writ appeal challenging the correctness, legality and propriety of findings on the following facts and grounds.

FACTS OF THE CASE

1. The Respondent has filed Writ Petition with following facts, "the the petitioner is interested in doing progressive agriculture activities and the members of the petitioner family also engaged in agriculture. Accordingly, the Petitioner purchased agriculture land bearing Sy. No.134 (Part) measuring 1.33 acres situated at Chikkanthapura of Sandur Taluk in Ballari District on 18.01.2011 through a registered sale deed and registered before the sub-registrar Sandur.

2. It is submitted that as per provisions of Karnataka Land Revenue Act 1964 transfer of land, registration of sale mutation entries, prescribed authority should make mutation entries once registration is done provision is mandatory. But, in the present case instead of mutating the name of the petitioner based on the registered Sale Deed dated 18/01/2011 the Respondent No.2 initiated the proceedings U/s 79-A of the Karnataka Land Reforms Act. In the said proceeding the Petitioner appeared and contested the said proceedings and requested the authority to drop the proceedings as the Petitioner has not violated any of the provisions of Karnataka Land Reforms

Act. Thereafter with a mala-fide intention and under the political interference, the Respondent No.2 passed the impugned order against the Petitioner forfeiting the agriculture land which was purchased by the Petitioner by order dated 20/07/2015. The copy of the Order dated 20/07/2015 is produced herewith and is marked as Annexure B.

3. It is submitted that the Govt. of Karnataka has made the amendment to the Karnataka Land Reforms Act and accordingly there is an amendment to Section 79A, 79B and 79C to the principle Act and by virtue of the said amendment, these sections came to be omitted Sections from the Principal Act with effect from 01.03.1974 and as such, the forfeiture order passed by Respondent No.2 as per Annexure-B stands abated as per Section 13(2) of Karnataka Land Reforms (Amendment) Ordinance, 2020. The copy of the said Ordinance 2020 is produced here with and is marked as Annexure C.

4. The Petitioner submits that, in utter violations principles of natural justice, the Assistant Commissioner passed the impugned order dated 20/07/2015 and directed the Respondent No.3 to mutate the name of the Govt. in the revenue

records of the land in question". With the above facts the Respondent has filed W.P. No.104380/2022 vide order dated 16.11.2022.

5. Aggrieved by the Order dated 16.11.2022, passed by the learned single judge of this Hon'ble Court, the Appellants filed present appeal on the following grounds.

6. The Appellants have not filed any other case or any other Appeal on the same cause of action before this Hon'ble Court or any other Court.

GROUND

17. The impugned order is contrary to Section 79 (A) and 79 (B) of Karnataka Land Reforms Act 1961 came to be omitted with effect from 13.07.2020, since, the impugned order was passed on 20.07.2015 at that time amendment has not come into force.

18. The Learned Single Judge has failed to notice that, the impugned order dated 20.07.2015 challenged in the year 2022 and the Respondent has not shown any reasons for condonation

of delay in filing petition and the Learned Single Judge has failed to notice the same.

20. The Learned Single Judge is in error in giving finding that, the impugned order does not indicate income of the petitioner /Respondent or his family members for the 5 years preceding the date of sale more than 2 lakh per annum and when the Respondent has not produced any documents regarding the same, the Learned Single Judge ought to have dismissal the writ petition.

26. The Appellants seek leave of this Hon'ble Court to urge some of the grounds at the time of hearing.

27. **Limitation:** There is a delay in filing the appeal hence IA is filed for condonation of delay.

P R A Y E R

WHEREFORE, the Appellants/State humbly pray that this Hon'ble Court may be pleased to:-

- (a) Set-aside the Order dated 16.11.2022 in WP NO.104380/2022 (KLR-RES) passed by the Learned Single Judge of this Hon'ble Court,

and dismiss the writ petitions in the interest of justice and equity.

- (b) Pass any other order or direction as this Hon'ble Court deems just and proper under the facts and circumstances of the case including award of cost in the interest of justice and equity.

Place: Dharwad

Date : .03.2025.

(MADANMOHAN. M. KHANNUR)
ADDL.GOVERNMENT ADVOCATE &
ADVOCATE FOR APPELLANTS/STATE

srg



WP No. 104380 of 2022

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 16TH DAY OF NOVEMBER, 2022

BEFORE

THE HON'BLE MR JUSTICE HEMANT CHANDANGOUDAR

WRIT PETITION NO. 104380 OF 2022 (KLR-RES)

BETWEEN:

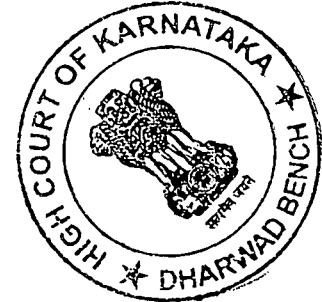
MILAPCHAND S/O LATE JUGARAJ JAIN,
AGE. 68 YEARS, OCC. AGRICULTURE AND BUSIENSS,
R/O. NO. 604, 'C' BLOCK, RAHEJA PARK,
MAGADI MAIN ROAD, BENGALURU-560079.

...PETITIONER

(BY SRI. K L PATIL, ADVOCATE AND SRI. S.S.BETURMATH,
ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REPRESENTED BY ITS SECRETARY,
DEPARTMENT OF REVENUE,
BENGALURU-560001.
2. THE ASSISTANT COMMISSIONER
BALLARI DIVISION,
OFFICE OF THE ASSISTANT COMMISSIONER
BALLARI-583101.
3. THE TAHASILDAR
SANDUR TALUK,
OFFICE OF THE TAHASILDAR,
SANDUR, DIST. BALLARI-583101.



...RESPONDENTS

(BY SRI. M.H.PATIL, AGA FOR R1 TO R3)

THIS WP IS FILED UNDER ARTICLE 226 AND 227 OF THE
CONSTITUTION OF INDIA PRAYING TO A) ISSUE WRIT ORDER OR
DIRECTION IN THE NATURE OF CERTIORARI QUASHING THE ORDER
BEARING NO. BHU.SU.79A AND 79B, 239/2011-12 DATED 20/07/2015
PASSED BY THE RESPONDENT NO. 2 VIDE ANNEXURE-B.

THIS PETITION COMING ON FOR PRELIMINARY HEARING, THIS
DAY, THE COURT MADE THE FOLLOWING:

This Certified Copy Contains 4 Pages
and Copying Charges of Rs. — is received
Cash / online.





WP No. 104380 of 2022

ORDER

Petitioner claims to have purchased land bearing survey No.134(part) measuring 1.33 acre situated at Chikkanthapura of Sandur Taluk in Ballari district through registered sale deed dated 18.01.2022 and in pursuance of the same, the name of the petitioner was mutated in the revenue records in respect of the subject land.

2. Respondent No.2 initiated proceedings against the petitioner for having purchased the subject land in violation of Section 79A and 79B of the Karnataka Land Reforms Act, 1961. The respondent No.2 by impugned order dated 20.07.2015 declared the sale deed executed in favour of the petitioner as null and void and vested the land with the State Government free from all encumbrance. Taking exception to the same this writ petition is filed.

3. Learned counsel appearing for the petitioner submits that the lawful possession of the subject land having not been taken, the impugned order passed by the respondent No.2 stands abated in view of omission of Section 79A and 79B of the Act with effect from 13.07.2020.



10/07/2022
10/07/2022
10/07/2022



WP No. 104380 of 2022

4. Learned Additional Government Advocate appearing for the respondent-State submits that though several notices were issued to the concerned Officer to furnish information as to whether lawful possession has been taken or not, the Officer concerned has not furnished. However, he submits that the present petition is not maintainable, since the land vested with the State Government free from all encumbrances and the name of the Government is mutated in the revenue records.

5. I have examined the submissions of learned counsel for the parties.

6. Section 79A and 79B of the Karnataka Land Reforms Act, 1961 came to be omitted with effect from 13.07.2020 and respondents-State having not produced any documents to establish that the lawful possession of the subject land was taken, the impugned order passed by the respondent No.2 stands abated

in view of the omission of the said provisions. Even otherwise, the impugned order does not indicate that the income of the petitioner or his family members for the five years preceding the date of sale exceeds more than 2 lakh per annum. Though the petitioner has not produced any documents the respondent No.2 in the absence of any material cannot hold that the income of the petitioner or the average income of the family members was more





WP No. 104380 of 2022

than 2 lakh per year for five years preceding date of sale.

Accordingly, I pass the following:

ORDER

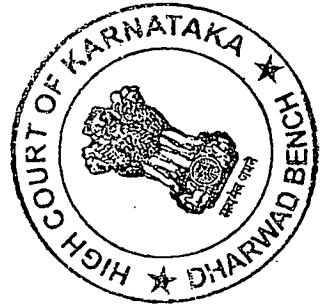
Writ Petition is allowed.

Impugned order the dated 20.07.2015 passed by the respondent No.2 at Annexure-B is hereby quashed. The respondent No.3 is hereby directed to delete the name of the Government and restore the name of the petitioner in the revenue records in respect of the subject land within the 4 weeks from the date of receipt of certified copy of this order.

"TRUE COPY"

20/12/22
Section Officer
Copying Branch
High Court of Karnataka
Dharwad Bench.

Sd/-
JUDGE



AC

List No.: 1 SI No.: 18

- a) The date on which the application was made *21/11/22*
- b) The date on which charges and additional charges, if any, are called for.....
- c) The date on which charges and additional charges, if any, are deposited / Paid.....
- d) The date on which the copies ready *21/12/22*
- e) The date of notifying the copy is ready for delivery *21/12/22*
- f) The Date on which the applicant is required to appear on before.....
- g) The date on which copy is delivered to the applicant *02/11/2022*
- h) Examined by *2*

14

IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH

WRIT PETITION NO. 104380 /2022

Between

Milapchand
S/o. Late Jugaraj Jain

Petitioner

And

The State of Karnataka,
And others

Respondents

INDEX

SL. No	Particulars	Page No.
1.	Synopsis	1-2
2.	Memorandum of Writ Petition	3-12
3.	Affidavit	13
4.	Annexure A:	14-20
5.	Annexure B:	21-22
6.	Annexure C:	23-28
7.	Vakalat	28
8.		

Dharwad
Date: 08/09/2022S.S. Beturmath
Advocate for Petitioner

IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH

WRIT PETITION NO. /2022

Between

Milapchand
S/o. Late Jugaraj Jain

Petitioner

And

The State of Karnataka,
And others

Respondents

Synopsis

- | | |
|------------|---|
| 18/01/2011 | The Petitioner purchased the property bearing Sy. No. 13(Part) measuring 1.33 acres situated at Chikkathapur village in Sandur Taluk, Ballari district. |
| 20/07/2015 | The Respondent No.2 passed the order thereby holds that, the Petitioner had violated Sec. 79 A and B of Karnataka Land Reforms Act 1961 |
| 13/07/2020 | Amendment to the Act and Sec. 79 A & B of the Act are omitted with effect from 01/03/1974. |

Brief Facts of the Case.

The purchased agriculture land bearing Sy. No. 134(Part) measuring 1.33 acres situated at Chikkanthapura of Sandur Taluk in Ballari District on 18/01/2011 through a registered sale deed and registered before the Sub-Registrar Sandur.

It is submitted that as per provisions of Karnataka Land Revenue Act 1964 transfer of land, registration of sale - mutation entries, prescribed authority should make mutation entries once

registration is done - provision is mandatory. But, in the present case instead of mutating the name of the petitioner based on the registered Sale Deed dated 18/01/2011 the Respondent No.2 initiated the proceedings under Sec. 79-A of the Karnataka Land Reforms Act. In the said proceeding the Petitioner appeared and contested the said proceedings and requested the authority to drop the proceedings as the Petitioner has not violated any of the provisions of Karnataka Land Reforms Act. Thereafter with a mala-fide intention and under the political interference, the Respondent No.2 passed the impugned order against the Petitioner forfeiting the agriculture land which was purchased by the Petitioner by order dated 20/07/2015.

It is submitted that the Govt. of Karnataka has made the amendment to the Karnataka Land Reforms Act and accordingly there is an amendment to Section 79A, 79B and 79C to the principle Act and by virtue of the said amendment, these sections came to be omitted Sections from the Principal Act with effect from 01.03.1974.

The Petitioner submits that, in utter violations principles of natural justice, the Assistant Commissioner passed the impugned order dated 20/07/2015 and directed the Respondent No.3 to mutate the name of the Govt. in the revenue records of the land in question.

Hence, the Petitioner being aggrieved by the order dated 20/07/2015 approached this Hon'ble Court questioning the legality and validity of the said order passed by the 2nd Respondent under Sec. 83 of the Karnataka Land Reforms Act, 1961.

Dharwad
Date: 08/09/2022

S.S. Beturmamath
Advocate for Petitioner

IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH
(Original Jurisdiction)

WRIT PETITION NO. /2022

Between

Milapchand

S/o. Late Jugaraj Jain

Age:68 years: Occ: Agriculture & Business

R/o. No. 604, 'C' Block,

Raheja Park, Magadi Main Road,

Bengaluru 560 079

Petitioner

And

1. The State of Karnataka,
Represented by its Secretary,
Department of Revenue,
Bengaluru-560001.
2. The Assistant Commissioner,
Ballari Division,
Office of the Assistant Commissioner,
Ballari
3. The Tahasildar,
Sandur Taluk,
Office of the Tahasildar,
Sandur, Dist: Ballari

Respondents

MEMORANDUM OF THE WRIT PETITION UNDER ARTICLE
226 & 227 OF THE CONSTITUTION OF INDIA.

The Petitioner most respectfully submits as under:-

1. The Petitioner is interested in doing progressive agriculture activities and the members of the Petitioner family also engaged in agriculture. Accordingly Petitioner purchased

agriculture land bearing Sy. No. 134(Part) measuring 1.33 acres situated at Chikkanthapura of Sandur Taluk in Ballari District on 18/01/2011 through a registered sale deed and registered before the Sub-Registrar Sandur. A Copy of Registered Sale Deed dated 15/01/2011 is produced herewith and marked as **Annexure A.**

2. It is submitted that as per provisions of Karnataka Land Revenue Act 1964 transfer of land; registration of sale - mutation entries, prescribed authority should make mutation entries once registration is done - provision is mandatory. But, in the present case instead of mutating the name of the petitioner based on the registered Sale Deed dated 18/01/2011 the Respondent No.2 initiated the proceedings U/s 79-A of the Karnataka Land Reforms Act. In the said proceeding the Petitioner appeared and contested the said proceedings and requested the authority to drop the proceedings as the Petitioner has not violated any of the provisions of Karnataka Land Reforms Act. Thereafter with a mala-fide intention and under the political interference, the Respondent No.2 passed the impugned order against the Petitioner forfeiting the agriculture land which was purchased by the Petitioner by order dated 20/07/2015. The copy of the

Order dated 20/07/2015 is produced herewith and is marked as **Annexure B**.

3. It is submitted that the Govt. of Karnataka has made the amendment to the Karnataka Land Reforms Act and accordingly there is an amendment to Section 79A, 79B and 79C to the principle Act and by virtue of the said amendment, these sections came to be omitted Sections from the Principal Act with effect from 01.03.1974 and as such, the forfeiture order passed by Respondent No.2 as per Annexure-B stands abated as per Section 13(2) of Karnataka Land Reforms (Amendment) Ordinance, 2020. The copy of the said Ordinance 2020 is produced here with and is marked as **Annexure C**.
4. The Petitioner submits that, in utter violations principles of natural justice, the Assistant Commissioner passed the impugned order dated 20/07/2015 and directed the Respondent No.3 to mutate the name of the Govt. in the revenue records of the land in question.
5. Hence, the Petitioner being aggrieved by the order dated 20/07/2015 approached this Hon'ble Court questioning the legality and validity of the said order passed by the 2nd Respondent under Sec. 83 of the Karnataka Land Reforms Act, 1961. It is submitted that even though there is an

alternative remedy to challenge the Order in question at Sec. of Karnataka Land Reforms Act 1964 before the Karnataka Appellate Tribunal, Bengaluru, since in view of the amendment to the Sec. 79 A & B the KAT Bengaluru is not entertaining the appeals challenging the order passed under Sec. 83 of Karnataka Land Reforms Act 1964. Hence, the petitioner, without having any other efficacious and alternate remedy and have approached this Hon'ble Court under Articles 226 & 227 of the Constitution of India. The Petitioner further states that, he has not filed any other Writ Petition/ Suit on the same cause of action before this Hon'ble' Court or any other Court.

GROUNDS

6. The impugned order passed by the 2nd Respondent is wholly erroneous, contrary to the law, illegal and void, same is unsustainable in the eye of law. Though the Petitioner has not violated any provisions of Land Reforms Act. The 2nd Respondent without considering the material available on record, on the wrong assumptions comes to conclusion that, the Petitioner violated provisions of Karnataka Land Reforms Act, under Sec. 79-A and directed the Tahasildar Sondur to

enter the name of the Government in the Record of Rights which is per-se illegal and contrary to law.

7. The impugned order has been passed in violation of the principles of natural justice. The 2nd Respondent has not given a proper opportunity to the Petitioner. Therefore the impugned order has been passed without giving any proper opportunity of hearing to the Petitioner in violation of the principles of natural justice; therefore the impugned order is unsustainable on the ground of violation of the principles of natural justice.
8. The object of section 79-A and B of the Land Reforms Act is to protect the interest of farmers in Karnataka. The two conditions should be fulfilled to purchase or to own the agriculture land under the provisions of section 79-A and B.
1) To purchase the agriculture land, the person should hold the agriculture land in his name and 2) Non agriculture income of the person should be not more than the limit prescribed under the section 79-A and B. In other words at present the income of the person should not cross the 25 lakhs per annum by considering the 5 years average. However, in the present case, the 2nd Respondent Assistant Commissioner comes to conclusion that the income limit

other than agriculture source of Petitioner's family exceeds more than 2 Lakhs per annum; hence, the impugned order came to be passed under the presumption and assumption without any base before passing impugned order. On the basis of the said conclusion, the 2nd Respondent comes to the conclusion that, the Petitioner has violated the provisions of section 79-A. The finding is prima facie is illegally and without jurisdiction.

9. Under section 79-A, the Assistant Commissioner is only required to decide whether Petitioner has any income beyond the limit prescribed under the law. But he has no power to decide about the source of income to purchase the agriculture land. The said finding is without jurisdiction and without authority of law.
10. The Section 79-A of Land Reforms Act is not dealing with sufficiency of the income to purchase the agriculture land. What is provided under the Section 79-A, the income of the person should not cross the ceiling limit? However, in the entire proceedings not even a word mentioned to indicate that the Petitioner has excess income more than the ceiling limits.

11. It is submitted that section 79-A has been introduced in the year 1974 with a view to bring about an agrarian reform. After lapse of 35 years, Section 79-A has no relevance to agrarian reforms. Infact the present trend to invite people to carry on agriculture operations in order to increase food production in the country which is carrying need of the hour. Under these circumstances, Section 79-A by the seer passage of time, have become unconstitutional and in violation of Article 19(1)(g) of the constitution of India.
12. It is submitted that the Govt. of Karnataka has made the amendment to the Karnataka Land Reforms Act and accordingly there is an amendment to Section 79A, 79B and 79C to the principle Act and by virtue of the said amendment, these sections came to be omitted from the Principal Act with effect from 01.03.1974 and as such, the forfeiture order passed by Respondent No.2 as per Annexure-B stands abated as per Section 13(2) of Karnataka Land Reforms (Amendment) Ordinance, 2020. Hence, by virtue of this amendment, the order passed by the Respondent No.2 requires to be set aside.
13. The section 79-A which prohibits even joint families from purchasing the lands if the income of the joint families is

more than the prescribed limits irrespective of the number of members of the joint family is wholly arbitrary and violative of Article 14 and 19(1)(g) of the constitution of India.

14. The section 79-A did not fix any time limits to take actions under section 79-A. This Hon'ble Court as well as the Hon'ble Supreme Court of India has time and again held that, if a power is not exercised by the authorities within the reasonable period, such exercise of power thereafter would be illegal and would be liable to be quashed. Today in the age of internet and computerization, the RTCs get mutated and transferred within a matter of weeks and get into revenue records, which are open for scrutiny by everyone. Even delay of a month would be frowned upon and any action which is initiated after a couple of months say 2 to 3 months would be bad in law. Therefore, section 79-A is arbitrary and is in violation of Article 14 of the Constitution of India.

15. It is further submits that the proceedings initiated under Sec. 83 of Karnataka Land Reforms Act 1964 are in summary proceedings and they ought to have been decided within a period not more than one year from the date of its institutions. In the preset case the Respondent had taken

more than 4 years to dispose of the same. Hence, the impugned order is illegal and liable to be quashed.

16. The action of the Respondents is wholly arbitrary, unreasonable and violative of Articles 14, 19, 21, 31 and 300A of the Constitution of India.
17. The Respondent No. 2 being the statutory authority required to act in the most fair and reasonable manner by adhering to the settled principles of law. In other words, they ought to have exercised the discretion vested in him; but in this matter, he has not exercised the discretion in either way. He has simply abstained from acting which is clearly contrary to the duties cast on him.
18. Seen from any angle the order passed by the Respondent No. 2 is suffers from the vice of illegality, arbitrariness, and mala fides. In fact, lack of good faith is writ large on the face of the impugned order.
19. Looking from any angle the impugned order passed by the Respondent No. 3 is illegal and against the principles of natural justice and bad in law and same deserves to be set aside by this Hon'ble Court.

PREYER

Wherefore, it is prayed to this Hon'ble Court may be pleased to:

- a. Issue Writ, order or direction in the nature of certiorari quashing the order bearing No. Kam. Bhu. Su: 79A & 79B: 239/2011-12 dated 20/07/2015 passed by the Respondent No. 2 vide Annexure-B.
- b. Issue Writ, order or direction in the nature of Mandamus, direct the 3rd Respondent to enter the name of the petitioner in the Record of Right.
- c. Issue Writ, order or direction in the nature of such other order or relief's as this Hon'ble Court deems fit in the interest of justice and equity.

Dharwad
Date: 08/09/2022

S.S. Beturmah
Advocate for Petitioner

Address for service: -
K.L. Patil

Advocate
Nalwadi Building,
Line Bazar,
Dharwad. 580 001

27

IN THE HIGH COURT OF KARNATAKA,
BENCH AT: DHARWAD

Between, NO. /2017

And

.....Petitioner

..... Respondents

VERIFYING AFFIDAVIT

In this I, Milapchand Jain S/o Jugaraj Jain, Aged about 70 years Occ: Agriculture, R/o No. 604, Raheja Park, Magadi Road, Bangalore – 560 079, now now at Dharwad do state on solemn affirmation as under:

1. I state that, I am the petitioner in this case. I know the facts of the case. Hence, I am competent to swear to this affidavit.
2. I state that, the contents mentioned in Para No. 1 to 19 of the _____ true and correct to the best of my knowledge and belief and I believe the same to be true, in token whereof I have put my signature hereto.
3. The Annexure A TO C the true copies of their respective Originals and Annexure — are the certified copies.

Place : Dharwad

Date: 08/09/2022

Milapchand Jain
Deponent

I know the Deponent.

(S.S. Bhatnagar)
Advocate, Dharwad.

No. of Corrections

28

ANNEXURE - A

12/7/2010-11

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
Government of Karnataka

ಸಾರ್ವಜನಿಕ ಕಾನೂನು ಮತ್ತು ನೋಂದಣಿ ಇಲಾಖೆ
Registration and Stamps Department

This Stamp can be used for any document

ಅಂಶ ಸಂಖ್ಯೆ: 10
ಮಾನ್ಯತೆ: 4
ರಾಜ್ ಸಂಖ್ಯೆ: 102/11/10-11
ನೇ ಮರು: 1
ಜಯ ನರಸಿಂಹರಾಯ
ಸಂಪುಟ

SALE DEED FOR Rs. 1,33,000/-

This Sale Deed is made on this 1st day of January - 2011 at Sandur.

Between:

Sri Thippe Swamy S/o. Sri Talawara Bheemappa, Hindu, aged about 46 years, Agriculturist, R/o. Anthapura, Village, Sandur Taluk, Bellary district, who shall be herein after called the "VENDOR" which term unless otherwise repugnant shall means and includes all his heirs, successors, agents, assignees, administrators and all such other persons claiming interest through him on the one part.

AND

Sri Milapchand Jain S/o. Late Sri Jugraj Jain, Hindu - Jain, aged about 58 years, Agriculturist & Businessman, R/o. No. 604, 'C' Block, Raheja Park, Magadi Main Road, Bangalore 560079, represented by his Registered General Power of Attorney Holder (Vide Reg. No. BLY-4-00081-2007-08) **Sri Ritesh M Jain** S/o. Sri Milapchand Jain, aged about 30 years, R/o. Bakshu Sadan, Martin Road, Bellary - 583101, who shall be herein after called the "VENDEE" which term unless otherwise repugnant shall means and includes all his heirs, successors, agents, assignees, administrators and all such other persons claiming interest through him on the other part.

WHEREAS the schedule mentioned Agricultural Land is the ancestral property of the Vendor herein.

[Signature]

[Signature]

Printing Date & Time: 18-01-2011 04:48:11 PM

ಪ್ರಾಪ್ತಿ ಸಂಖ್ಯೆ: 1271

ಪ್ರಾಪ್ತಿ ಸಂಖ್ಯೆ ಸಂಖ್ಯೆ: 18-01-2011 ರಂದು 04:38:29 PM

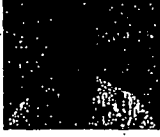
ಪ್ರಾಪ್ತಿ ಸಂಖ್ಯೆ: 18-01-2011 ರಂದು 04:38:29 PM

ಕ್ರಮ ಸಂಖ್ಯೆ	ವಿವರ	ರೂ. ವೆ
1	ಮೊದಲನೇ ಶುಲ್ಕ	1330.00
2	ಮೊದಲನೇ ಶುಲ್ಕ	300.00
3	ಪರಿವೇಶನ ಶುಲ್ಕ	105.00
4	ಇತರೆ	35.00
	ಒಟ್ಟು:	1770.00

ಇದು I ಮುಖ್ಯ 10271/10-11
ದಾಖಲೆ ಮಾಡಿ ಸೇರಿತು

ಇದು ಮೊದಲನೇ ಶುಲ್ಕ
ಮೊದಲನೇ ಶುಲ್ಕ

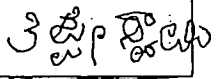
ಶ್ರೀ ಮಿಲಾಪ್‌ಚಂದ್ ಜೈನ್ ಪರವಾಗಿ ಶ್ರೀ ರಿತೇಶ್ ಎಂ.ಜೈನ್ ಜಿ.ಪಿ.ಎ ಹೋಲ್ಡರ್ ಇವರಿಂದ ಹಾಜರ ಮಾಡಲ್ಪಟ್ಟಿದೆ

ಹೆಸರು	ಪೋಟೊ	ಹೆಚ್ಚಿನ ಗುರುತು	ಸಹಿ
ಶ್ರೀ ಮಿಲಾಪ್‌ಚಂದ್ ಜೈನ್ ಪರವಾಗಿ ಶ್ರೀ ರಿತೇಶ್ ಎಂ.ಜೈನ್ ಜಿ.ಪಿ.ಎ ಹೋಲ್ಡರ್			

ನೋಂದಣಾಧಿಕಾರಿ
Seal of the S.

ಉಪ ಮೊದಲನೇ ಶುಲ್ಕ
ಸೇರಿತು

ಬರೆದುಕೊಟ್ಟಿದ್ದಾಗಿ ಒಪ್ಪಿರುತ್ತಾರೆ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಪೋಟೊ	ಹೆಚ್ಚಿನ ಗುರುತು	ಸಹಿ
1	ಮಿಲಾಪ್‌ಚಂದ್ ಜೈನ್ ಪರವಾಗಿ ಶ್ರೀ ರಿತೇಶ್ ಎಂ.ಜೈನ್ ಜಿ.ಪಿ.ಎ ಹೋಲ್ಡರ್ (ಬರೆದುಕೊಂಡವರು)			
2	ಶ್ರೀ ತಿವ್ವಣ್ಣಮಿ (ಬರೆದುಕೊಂಡವರು)			

ಉಪ ಮೊದಲನೇ ಶುಲ್ಕ
ಸೇರಿತು

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
Government of Karnataka

ನೋಂದಣಿ ಮತ್ತು ಮುದ್ರಾಂಶ ಇಲಾಖೆ
Registration and Stamps Department

-2-

WHEREAS the Schedule mentioned agricultural land is standing in the name of the Vendor in the concerned Revenue Records.

WHEREAS the VENDOR herein has intended to sell the schedule mentioned Agricultural Land to the VENDEE herein for his legal necessities. The VENDEE has also willing to purchase the schedule mentioned Agricultural Land. Hence, this Sale Deed.

NOW THIS SALE DEED WITNESSTH AS FOLLOWS:

1. The VENDOR hereby, conveyed the schedule mentioned Agricultural Land for a sum of Rs. 1,33,000/- (Rupees One Lakh Thirty Three Thousand only) to the VENDEE herein.
2. The VENDEE herein has paid the entire sale consideration amount of Rs. 1,33,000/- (Rupees One Lakh Thirty Three Thousand only) in cash to the VENDOR herein. The VENDOR hereby acknowledged the receipt of the entire sale consideration amount.
3. The VENDOR hereby, sold, conveyed, transferred and assigned all his Rights, Title & Interest in and over the Schedule

[Signature]

ಶಿಶು ರಾಜು

ಸಂಖ್ಯೆ I ಮತ್ತೊಂದು 10-3-1/100
 ದಾಖಲೆ ಸಂಖ್ಯೆ 4 ನೇ ಮು.

ಗುರುತಿಸುವವರು

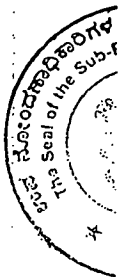
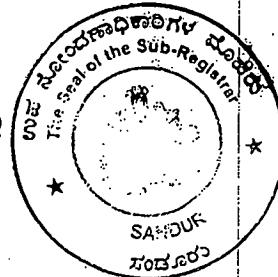
ಮೈಸೂರು ವಿಶ್ವವಿದ್ಯಾನಿಲಯ
ಪುಸ್ತಕಾಲಯ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು ಮತ್ತು ವಿಳಾಸ	ಸಹಿ
1	ಕೆ.ಎಸ್.ಎಸ್. ಶಿವಪ್ಪ ಕಂಪೌಂಡಿಂಗ್ ಪ್ರಕೃತಿಕಾರ್ಯಾಚರಣೆ	G. Srinivasappa
2	ಕೆ.ಎಸ್.ಎಸ್. ಶಿವಪ್ಪ ಕಂಪೌಂಡಿಂಗ್ ಪ್ರಕೃತಿಕಾರ್ಯಾಚರಣೆ	G. Srinivasappa

ಉಪ ವ್ಯವಸ್ಥಾಪಕಾಧಿಕಾರಿ
ಪೊಲೀಸ್ ಠಾಣೆ



1 ನೇ ಪುಸ್ತಕದ ದಸ್ತಾವೇಜು
ನಂಬರ SNR-1-01271-2010-11 ಆಗಿ
ಸಿ.ಡಿ. ನಂಬರ SNRD20 ನೇ ಧೃಢೀಕರಣ
ದಿನಾಂಕ 18-01-2011 ರಂದು ನೋಂದಾಯಿಸಲಾಗಿದೆ
ಉಪ ನೋಂದಣಾಧಿಕಾರಿ
ನೋಂದಣಾಧಿಕಾರಿ
ಸಹಿ ರಚಿಸ್ತಾರ (ಸಂಚಾರಿ)



ಕರ್ನಾಟಕ ಸರ್ಕಾರ
Government of Karnataka

ನೋಂದಣಿ ಮತ್ತು ಮುದ್ರಾಂಶ ಇಲಾಖೆ
Registration and Stamps Department



This deed is not valid for any purpose

ಇದರ ಮೇಲೆ ಮುದ್ರಾಂಶವು ಸೇರಿರುವುದಿಲ್ಲ
This deed is not valid for any purpose

-3-

ಎಸ್. ಕುಮಾರಸ್ವಾಮಿ

mentioned Agricultural Land and also delivered the vacant possession of the schedule mentioned Agricultural Land to the VENDEE herein.

4. The VENDOR hereby promised and assured that there is no defect in his title in respect of the schedule mentioned Agricultural Land and it is free from encumbrances.
5. The VENDOR further promised and assured that the schedule mentioned Agricultural Land is free from litigations and it is not offered as security to any Banks, Government, Non - Government Authorities, Private Persons or Institutions.
6. The Vendor hereby, agreed and undertakes to settle the disputes if any arise in future at his cost and to see that the title of the Schedule mentioned Agricultural land is confirmed in favor of the VENDEE herein.

SCHEDULE

Agricultural land situate in Chikkanthapura Village, in Toranagal Hobli, Sandur Taluka, Bellary District, situate within the Registration district of Bellary and Sub - Registration district of Sandur, with the following description.

ಕೆ.ಜಿ.ಎ.ಎಲ್.

*

ಇದು 7 ನೇ ಪುಟ 107/10-1/1
ವಸತಿಭೂಮಿ 6 ನೇ ಪುಟ



ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Department of Stamps and Registration

ಉಪ-ನೋಂದಣಿ ಅಧಿಕಾರಿ
ಸಂಚಾರಿ

ಪ್ರಮಾಣ ಪತ್ರ

1957 ರಲ್ಲಿ ನೋಂದಣಿ ಮುದ್ರಾಂಕ ಕಾಯ್ದೆಯ ಕಲಂ 10 ಎ ಅಡಿಯಲ್ಲಿಯ ಪ್ರಮಾಣ ಪತ್ರ

ಶ್ರೀ ಮಿಲಾಪ್ ಚಂದ್ ಭೈರಪ್ಪಾಣ್ಣಿ ಲೀಡರ್ ಎಂ.ಜೈನ್ ಜಿ.ಪಿ.ಎ ಹೋಲ್ಡರ್ , ಇವರು 9090.00 ರೂಪಾಯಿಗಳನ್ನು
ನಗದು ಮುದ್ರಾಂಕ ಶುಲ್ಕವಾಗಿ ಪಾವತಿಸಿರುವುದನ್ನು ದೃಢೀಕರಿಸಲಾಗಿದೆ

ಪ್ರಕಾರ	ಮೊತ್ತ (ರೂ.)	ಹಣದ ಪಾವತಿಯ ವಿವರ
ಯಾವುದೇ ಇತರ ಪಕ್ಕತಿ	9050.00	ಬ್ಯಾಂಕ್‌ನ ಚೆಕ್ ನಂ. 669660, ದಿನಾಂಕ 18/01/2011 ಎಸ್.ಬಿ.ಎಂ. ಸಂಚಾರಿ ಶಾಖೆ
ನಗದು ರೂಪ	40.00	ಪ್ರಮಾಣ ಪತ್ರ
ಒಟ್ಟು :	9090.00	

ಸ್ಥಳ : ಸಂಚಾರಿ

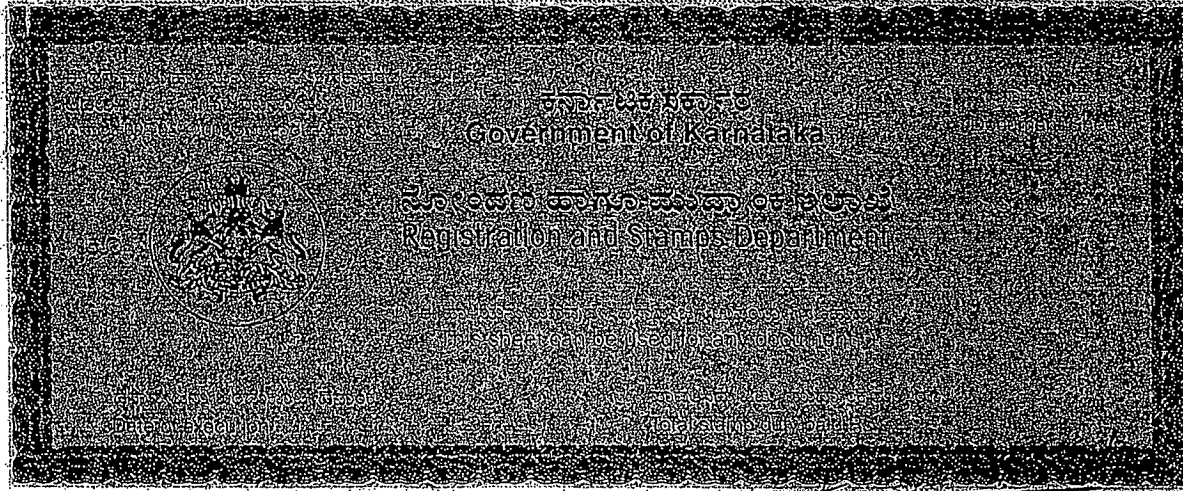
ದಿನಾಂಕ : 18/01/2011

ಉಪ-ನೋಂದಣಿ ಅಧಿಕಾರಿ

ಉಪ-ನೋಂದಣಿ ಮತ್ತು ಯುಕ್ತ ಅಧಿಕಾರಿ

(ಸಂಚಾರಿ)





ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ದಸ್ತಖತೆ ಮಾಡಿದ ದಿನಾಂಕ: 7 ನೇ ನವೆಂಬರ್

-4-

Sy. No.	Extent	Assessment	Khata No.	Nature
134 (Part)	1.33 Acres	Rs 0.60	120 T	DRY

BOUNDARIES ARE AS FOLLOWS:

East : Land bearing Survey No. 134 (Block No. 1)
 West : Land bearing Survey No. 134 (Block No. 1)
 North : Land bearing Survey No. 134 (Block No. 1)
 South : Land bearing Survey No. 135

In witness whereof we signed this sale deed on this
18th day of January - 2011 at Sandur

WITNESSES

1. *Officer s/o foru u ppo chikantappa* *ಅಪ್ಪಣ್ಣ*
VENDOR
2. *ರವಿ ಕೃಷ್ಣ ಕೊಲಾಟೆ ಅಧೀಶ್ವರ* *ಅಧೀಶ್ವರ*
VENDEE

DRAFTED BY,

R. Jagannatha Rao
(R. JAGANNATHA RAO)
 Advocate, Bellary

Sadashivarao Shinde
SADASHIVARAO SHINDE

D.W.L. No. 33/05-06

SANDUR-581 119



35 Annexure-B

ಕರ್ನಾಟಕ ಸರ್ಕಾರ (ಕಂದಾಯ ಇಲಾಖೆ)

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ ಬಳ್ಳಾರಿ ಉಪ ವಿಭಾಗ ಬಳ್ಳಾರಿ ಜಿಲ್ಲೆ: ಬಳ್ಳಾರಿ
 OFFICE OF THE ASSISTANT COMMISSIONER BALLARI SUB-DIVISION BALLARI
 TQ & DIST: BALLARI PHONE: 08392-277413 E-mail: acbly@gmail.com

ನಂ:ಭೂಸು:79ಎ/ಬಿ:239/2011-12

ದಿನಾಂಕ: 20-07-2015

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಪರವಾಗಿ

ತಹಶೀಲ್ದಾರರು, ಸಂಡೂರು

----- ಮನವಿದಾರರು.

: ವಿರುದ್ಧ :

ಶ್ರೀಮೀಲಾಪ್‌ಚಂದ್ ಜೈನ್
 ಜಿ.ಪಿ.ಎ.ಹೊಲ್ಡರ್ ರೀತೆಶ್ ಜೈನ್
 ಬಳ್ಳಾರಿ.

(ಶ್ರೀ ಆರ್.ಜಗನ್ನಾಥರಾವ್ ವಕೀಲರು ಬಳ್ಳಾರಿ)

-----ಎದುರುದಾರರು.

ವಿಷಯ:-ಸಂಡೂರು ತಾಲೂಕು ಚಿಕ್ಕಂತಾಪುರ ಗ್ರಾಮದ ಸ.ನಂ.134 ವಿಸ್ತೀರ್ಣ 1.34
 ಎಕರೆ ಜಮೀನಿನ ಖರೀದಿ ವ್ಯವಹಾರದಲ್ಲಿ ಕರ್ನಾಟಕ ಭೂಸುಧಾರಣೆ ಕಾಯ್ದೆ 1961
 ಕಲಂ 79 ಉಲ್ಲಂಘನೆ ಬಗ್ಗೆ.

- ಉಲ್ಲೇಖ:-1)ಶ್ರೀ ಜಗನ್ನಾಥರಾವ್ ವಕೀಲರು ಬಳ್ಳಾರಿ ಇವರ ಮೇಲ್ಮನವಿ ದಿನಾಂಕ:09-8-11
 2)ತಹಶೀಲ್ದಾರರು ಸಂಡೂರು ಇವರ ಪತ್ರ ಸಂ.ಕಂ.ಪಹಣಿ.ಅಪೀಲು.102.2010-11
 ದಿನಾಂಕ:28-3-2011
 3)ಈ ಕಾರ್ಯಾಲಯದ ಅಪೀಲು ಶಾಖೆಯಿಂದ ಭೂಸುಧಾರಣೆ ಶಾಖೆಗೆ
 ವರ್ಗಾಯಿಸಿದ ದಿನಾಂಕ:11-2-2015
 4)ಈ ಕಾರ್ಯಾಲಯದಿಂದ ವಿಚಾರಣೆಗೆ ಹಾಜರಾಗಲು ನೋಟೀಸ್ ನೀಡಿದ
 ದಿನಾಂಕ:16-9-2013, 22-1-2015, 03-3-2015, 24-4-2015, ಹಾಗೂ
 30-6-2015

* * * * *

ಪೀಠಿಕೆ:

ಸಂಡೂರು ತಾಲೂಕು ಚಿಕ್ಕಂತಾಪುರ ಗ್ರಾಮದ ಸ.ನಂ.134 ವಿಸ್ತೀರ್ಣ 1.34 ಎಕರೆ
 ಜಮೀನಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಕ್ರಯ ಪತ್ರ ಸಂ.SNR-1-01273-2010-11 ದಿನಾಂಕ: 18-1-2011 ಹಕ್ಕು
 ಬದಲಾವಣೆ ಸಂಖ್ಯೆ.28.2010-11 ದಿನಾಂಕ:10-2-2011 ರಲ್ಲಿ ಕಂದಾಯ ಪರಿವೀಕ್ಷಕರು ತೊರಣಗಲ್ಲು
 ಇವರು ಸದರಿ ಕ್ರಯ ವ್ಯವಹಾರದಲ್ಲಿ ಕರ್ನಾಟಕ ಭೂಸುಧಾರಣೆ ಕಾಯ್ದೆ ಕಲಂ 79ಎಬಿ
 ಉಲ್ಲಂಘನೆಯಾಗಿರುತ್ತದೆ. ಎಂದು ಗೈರು ಮಂಜೂರು ಮಾಡಿರುವುದರ ವಿರುದ್ಧ ಮೇಲ್ಮನವಿಯನ್ನು
 ಸಲ್ಲಿಸಿರುತ್ತಾರೆ. ವರದಿ ಸಂ.ಕಂ.ಭೂಸು.26.2010-11 ದಿನಾಂಕ:9-3-2011 ರಲ್ಲಿ ವರದಿ ಮಾಡಿರುತ್ತಾರೆಂದು
 ತಹಶೀಲ್ದಾರರು ಸಂಡೂರು ಇವರ ಉಲ್ಲೇಖ(1)ರಲ್ಲಿ ವರದಿ ಸಲ್ಲಿಸಿದಂತೆ ಈ ಕಾರ್ಯಾಲಯದಿಂದ
 ಉಲ್ಲೇಖ (3) ರಲ್ಲಿ ನೋಟೀಸನ್ನು ಜಾರಿಮಾಡಿ ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ:26-8-2011, 3-1-2012,
 6-3-2012, 15-5-2012, 17-7-2012, 13-11-2012, 29-1-2013, 19-3-2013, 18-6-2013, 10-
 9-2013, 24-9-2013, 06-12-2013, 10-02-2015, 24-4-2015, 11-6-2015, 10-7-2015,
 ಹಾಗೂ 17-7-2015 ರಂದು ನಡೆಸಲಾಗಿರುತ್ತದೆ.

-2-

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
 24/5

12

ಎದುರುದಾರರ ಪರ ವಕೀಲರು ವಿಚಾರಣೆಗೆ ಹಾಜರಾಗಿರುತ್ತಾರೆ. ಉಲ್ಲಂಘನೆಯಾಗಿರುವ ಬಗ್ಗೆ ದಾಖಲೆಗಳನ್ನು ಸಲ್ಲಿಸಿರುವುದಿಲ್ಲ. ಸಾಕಷ್ಟು ವಿಚಾರಣೆ ನೋಟಿಸ್‌ಗಳನ್ನು ನೀಡಲಾಗಿಯು ಯಾವುದೇ ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸಿರುವುದಿಲ್ಲ.

ಕರ್ನಾಟಕ ಭೂಸುಧಾರಣೆ ಕಾಯ್ದೆ 1961 ರ ಕಲಂ 79ಎ ಪ್ರಕಾರ ಕಾಯ್ದೆ ಪ್ರಾರಂಭದಂದು ಮತ್ತು ಪ್ರಾರಂಭದ ನಂತರ ಯಾವ ಒಂದು ಕುಟುಂಬದ ಅಥವಾ ಒಂದು ಅವಿಭಕ್ತ ಕುಟುಂಬದ ವ್ಯಕ್ತಿಯವರ ಭೂಮಿಗಳಲ್ಲದ ಮೂಲದಿಂದ ಬಂದ ಒಂದು ನಿಶ್ಚಿತ ವಾರ್ಷಿಕ ಆದಾಯವು ರೂ. 2,00,000/- ರೂಪಾಯಿಗಳಿಗಿಂತ ಕಡಿಮೆ ಇಲ್ಲದ ಯಾವ ವ್ಯಕ್ತಿಯೂ ಭೂ ಒಡೆಯನಾಗಲಿ, ಜಮೀನುದಾರನೆಂದಾಗಲಿ, ಗೇಣಿದಾರನೆಂದಾಗಲಿ ಅಥವಾ ಸ್ವಾಧೀನ ಹೊಂದಿದ ಅಡಮಾನ ಪಡೆದವನೆಂದಾಗಲಿ ಅಥವಾ ಅನ್ಯತಾ ಬೇರೆ ರೀತಿಯಲ್ಲಿ ಭಾಗಶಃ ಒಂದು ಅಥವಾ ಭಾಗಶಃ ಬೇರೊಂದು ಸಾಮರ್ಥ್ಯದ ಮೇಲಾಗಲಿ, ಯಾವುದೇ ಭೂಮಿಯನ್ನು ಸಂಪಾದಿಸಿಕೊಳ್ಳಲು ಹಕ್ಕುಳ್ಳವನಾಗತಕ್ಕದ್ದಲ್ಲ.

ಕರ್ನಾಟಕ ಭೂಸುಧಾರಣೆ ಕಾಯ್ದೆ 1961 ರ ಕಲಂ 79ಬಿ(1)(ಎ) ಪ್ರಕಾರ ವ್ಯಕ್ತಿಯವರಿಗೆ ಭೂಮಿಯನ್ನು ಸಾಗುವಳಿಮಾಡುವ ಒಬ್ಬ ವ್ಯಕ್ತಿಯಲ್ಲದ ಇತರ ಯಾವ ವ್ಯಕ್ತಿಯೂ ಭೂಮಿಯನ್ನು ಹೊಂದಲು ಹಕ್ಕುಳ್ಳವನಾಗಿರತಕ್ಕದ್ದಲ್ಲ.

ಎದುರುದಾರರಿಗೆ ಸಾಕಷ್ಟು ಕಾಲಾವಕಾಶವನ್ನು ನೀಡಲಾಗಿಯು ಯಾವುದೇ ದಾಖಲೆಗಳನ್ನು ಸಲ್ಲಿಸದಿರುವುದರಿಂದ ಈ ಕೆಳಕಂಡಂತೆ ಆದೇಶ

ಆದೇಶ

ಸಂ.ಕಂ.ಭೂಸು:79ಎ&ಬಿ:239:2011-12

ದಿನಾಂಕ:20-7-2015.

ಸಂಘೋಷಿತ ತಾಲೂಕು ಚಿಕ್ಕಂತಾಪುರ ಗ್ರಾಮದ ಗ್ರಾಮದ ಸ.ನಂ.134 ವಿಸ್ತೀರ್ಣ 1.34 ಎಕರೆ ಜಮೀನಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಕ್ರಯ ಪತ್ರ ಸಂ.SNR-1-01273-2010-11 ದಿನಾಂಕ: 18-1-2011 ರ ಕ್ರಯ ವ್ಯವಹಾರದಲ್ಲಿ ಕರ್ನಾಟಕ ಭೂಸುಧಾರಣೆ ಕಾಯ್ದೆ 1961 ಕಲಂ 79ಎ&ಬಿ ಉಲ್ಲಂಘನೆಯಾಗಿದೆ. ಎಂದು ಆದೇಶಿಸಿದೆ. ಸದರಿ ಜಮೀನನ್ನು ಕರ್ನಾಟಕ ಸರ್ಕಾರ ಹೆಸರಿಗೆ ಹಕ್ಕು ದಾಖಲಿಸಲು ಆದೇಶಿಸಲಾಗಿದೆ.

ಸದರಿ ಆದೇಶವನ್ನು ಬೆರಳಚ್ಚುಗಾರರಿಗೆ ಉಕ್ತ ಲೇಖಿಸಿ ಸೂಕ್ತ ತಿದ್ದುಪಡಿಯೊಂದಿಗೆ ಬಹಿರಂಗವಾಗಿ ದಿನಾಂಕ:20-7-2015 ರಂದು ಘೋಷಿಸಲಾಯಿತು.

ಲಕ್ಷ್ಮಿ. M. A. ಕಡತ


ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ಬಳ್ಳಾರಿ
ಉಪವಿಭಾಗ, ಬಳ್ಳಾರಿ.

ಪ್ರತಿಯನ್ನು:1.ತಹಶೀಲ್ದಾರರು, ಸಂಘೋಷಿತ ಕಂದಾಯ ನಿರೀಕ್ಷಕರು, ತೋರಣಗಲ್ಲು ಇವರಿಗೆ ಆದೇಶದಂತೆ ದಾಖಲಿಸಲು ಹಾಗೂ ಸದರಿ ಜಮೀನನ್ನು ಕರ್ನಾಟಕ ಸರ್ಕಾರಕ್ಕೆ ಕಬ್ಬಾ ತೆಗೆದುಕೊಂಡು ಈ ಕಛೇರಿಗೆ ವರದಿ ಸಲ್ಲಿಸಲು ಸೂಚಿಸಿದೆ.

2.ಸಂಬಂಧಪಟ್ಟ ಎದುರುದಾರರಿಗೆ.



ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರ

ಅಧಿಕೃತವಾಗಿ ಪ್ರಕಟಿಸಲಾದುದು
ವಿಶೇಷ ರಾಜ್ಯ ಪತ್ರಿಕೆ

ಭಾಗ-೪ಎ Part-IVA	ಬೆಂಗಳೂರು, ಸೋಮವಾರ, ೧೩, ಜುಲೈ, ೨೦೨೦ (ಆಷಾಢ ೨೨, ಶಕವರ್ಷ, ೧೯೪೨) Bengaluru, MONDAY, 13, JULY, 2020 (Ashadha, 22, ShakaVarsha, 1942)	ನಂ. ೨೮೬ No. 286
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PARLIAMENTARY AFFAIRS AND LEGISLATION SECRETARIAT

NOTIFICATION

No. DPAL 39 SHASANA 2020, BENGALURU, Dated: 13.07.2020

The Karnataka Land Reforms (Amendment) Ordinance, 2020 ಇದಕ್ಕೆ ಜುಲೈ ತಿಂಗಳ 13ನೇ ದಿನಾಂಕದಂದು ರಾಜ್ಯಪಾಲರ ಒಪ್ಪಿಗೆ ದೊರೆತಿದ್ದು, ಸಾಮಾನ್ಯ ತಿಳುವಳಿಕೆಗಾಗಿ ಇದನ್ನು 2020ರ ಕರ್ನಾಟಕ ಅಧ್ಯಾದೇಶ ಸಂಖ್ಯೆ 13 ಎಂಬುದಾಗಿ ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರದಲ್ಲಿ ಪ್ರಕಟಿಸಬೇಕೆಂದು ಆದೇಶಿಸಲಾಗಿದೆ.

KARNATAKA ORDINANCE NO 13 OF 2020

THE KARNATAKA LAND REFORMS (AMENDMENT) ORDINANCE, 2020

(Promulgated by the Governor of Karnataka in the seventy-first year of the Republic of India and first published in the Karnataka Gazette Extra-Ordinary on 13th day of July, 2020)

An Ordinance further to amend the Karnataka Land Reforms Act, 1961 (Karnataka Act 10 of 1962) and for matters connected therewith or incidental thereto;

Whereas the Karnataka Legislative Assembly and the Karnataka Legislative Council are not in session and the Governor of Karnataka is satisfied that the circumstances exist which render it necessary for him to take immediate action to promulgate the Ordinance for the purposes hereinafter appearing;

Now, therefore, in exercise of the powers conferred by clause (1) of Article 213 of the Constitution of India, the Governor of Karnataka is pleased to promulgate the following Ordinance, namely:-

1. Short title and commencement.- (1) This Ordinance may be called the Karnataka Land Reforms (Amendment) Ordinance, 2020.

(2) Sections 3, 4, 5, 6, 7 and 11 shall be deemed to have been come into force with effect from the 1st day of March 1974 and remaining provisions shall come into force at once.

(೧)

2. Amendment of section 63.- In the Karnataka Land Reforms Act, 1961 (Karnataka Act 10 of 1962) (hereinafter referred to as Principal Act), in section 63,-

(i) for sub-section (2), the following shall be substituted, namely:-

"(2) The ceiling area for a person who is not a member of a family or who has no family or for a family shall be twenty units."

Provided that, in the case of a family consisting of more than five members the ceiling area shall be twenty units plus an additional extent of four units for every member in excess of ten, so however that the ceiling area shall not exceed forty units in the aggregate."

(ii) for sub-section (2A), the following shall be substituted, namely,-

"(2A) The ceiling area for a person who is tenant under clause (b) of sub-section (2) of section 5 shall be eighty units."

3. Amendment of section 70.- In the Principal Act, in section 70, in sub-section (1), the words, figures and letter "not being a person disentitled to hold lands under section 79A" shall be omitted.

4. Amendment of section 72.- In the Principal Act, in section 72, in sub-section (1), the figures, word and letters "79A and 79B" shall be omitted.

5. Omission of sections 79A.- In the Principal Act, section 79A shall be omitted.

6. Omission of sections 79B.- In the Principal Act, section 79B shall be omitted.

7. Omission of sections 79C.- In the Principal Act, section 79C shall be omitted.

8. Amendment of sections 80.- In the Principal Act, in section 80,-

(i) in the heading, for the words "Transfer to non-agriculturists barred" the words "Restrictions on transfer of certain lands" shall be substituted;

(ii) in sub-section (1),-

(a) clause (b) shall be omitted;

(b) for sub-clause (i), the following shall be substituted, namely:-

"(i) in case of A-class irrigated land, who does not use for agriculture purpose; or";

(c) in sub-clause (ii), for the words "who being an agriculturist holds as owner" the words "who holds as a owner" shall be substituted;

(d) sub-clause (iii) shall be omitted;

(e) sub-clause (iv), shall be omitted; and

(f) the proviso shall be omitted.

9. Insertion of new section 80-A.- In the Principal Act, after section 80, the following shall be inserted, namely:-

"80-A. Restriction on lands granted to the Scheduled Castes or Scheduled Tribes.- No conditions laid down in this Act shall be relaxed in respect of lands granted, during the period of prohibition under the Karnataka Scheduled Castes and Scheduled Tribes (Prohibition of Transfer of Certain Lands) Act, 1978 (Karnataka Act 2 of 1979)."

10. Amendment of section 81.- In the Principal Act, in section 81,-

(i) for the heading, the following shall be substituted, namely:-

"81. Restriction on Sale or Mortgage of Agriculture Land"

(ii) in sub-section (1), the words, figures and letters "section 79A or section 79B or" shall be omitted.

(iii) after sub section (2), the following shall be inserted, namely:-

"(2-A) No mortgage of agriculture land shall be made in favour of any person, other than the institutions specified in clause (a) and (b) of sub section (1).

11. Amendment of section 104.- In the Principal Act, in section 104, the figures, word and letters "79A and 79B" shall be omitted.

12. Amendment of section 109.- In the Principal Act, in section 109,-

(i) in sub-section (1), the figures and letters "79A, 79B" shall be omitted; and

(ii) in sub-section (1A), the figures and letters "79A, 79B" shall be omitted.

13. Savings.- (1) Notwithstanding the omission of sections 79A, 79B and 79C with effect from 1st day of March 1974, the cases already disposed of before the publication of the Karnataka Land Reforms (Amendment) Ordinance, 2020 shall not in any way be affected.

(2) All cases pending on the date of publication of this Act pertaining to sections 79A, 79B and 79C and consequential thereof shall stand abated.

VAJUBHAI VALA
GOVERNOR OF KARNATAKA

By order and in the name of the
Governor of Karnataka,

(K. DWARAKANATH BABU)
Secretary to Government
Department of Parliamentary Affairs and
Legislation.

40

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2025

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
And another.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

**MEMO REG: STATEMENT OF OBJECTIONS OF RESPONDENTS NO. 1 TO
3 NOT FILED IN WRIT PETITION NO. 104320/2022.**

The Appellants submit that the Respondents No. 1 TO 3 in the aforesaid Writ Petition though appeared have not filed the Statement of Objection to Writ Petition No. 104320/2022.

Place:Dharwad
Dated:25.03.2025

(MADANMOHAN. M. KHANNUR)
ADDL., GOVERNMENT ADVOCATE
AND
ADVOCATE FOR APPELLANTS/STATE

41

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2025

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
And another.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

MEMO OF APPEARANCE

I have been instructed by the Head of Legal Cell & Ex-officio, Deputy Secretary to Government, Department of Revenue vide **G.O. NO. RD/131/LRA/2023, BENGALURU, DATED: 04.12.2024** appear for the Appellants in the above matter who are Respondents No. 1 & 3 in the Writ Petition No.104320/2022. This Hon'ble Court may therefore be pleased to enter my appearance for the said Appellants.

Place:Dharwad

Dated: 25.03.2025

(MADANMOHAN. M. KHANNUR)

ADDL., GOVERNMENT ADVOCATE

AND

ADVOCATE FOR APPELLANTS/STATE

ROLL NO. 897/1988

Address for Service
Government Advocate
Advocate General's Office,
Dharwad.

IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

PRESENTATION FORM

WRIT APPEAL NO.....of 2025

District: Ballari

PRESENTED WITH COURT FEE LABELS AS FOLLOWS

Sl. NO.	Particulars	Court fee affixed on the papers	
		Rs.	P.
1.	On Memorandum of Appeal/Petition Application ...		
2.	On the certified copies of judgment and decree ...		
3.	Memo of Appearance ...		
4.	I.A. No.1/2025 for Dispensation of production of English Translation Copy.	20	00
5.			
6.			
7.	 Total ...	20	00

Number of copies furnished 2 Sets

Advocate for Petitioner/ Respondent Appellant

Clerk
Office of the Advocate-General
For Karnataka, Dharwad

Received Court fee and Stamp
Labels as above

Receiving Clerk

Place: Dharwad
Dated: 25.03.2025

THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

WRIT APPEAL NO. /2025

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
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Appellants

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Respondent

INDEX

SL NO	PARTICULARS	PAGE NOS.
1.	Interlocutory Application No.1/2025 for Dispensation of production of English Translation Copy.	42-43
2.	Verifying Affidavit	44

Place:Dharwad

Dated: 25.03.2025

(MADANMOHAN. M. KHANNUR)

ADDL., GOVERNMENT ADVOCATE

AND

ADVOCATE FOR APPELLANTS/STATE

42

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2025

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
And another.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

**APPLICATION FOR DISPENSATION OF PRODUCTION OF ENGLISH
TRANSLATION COPY UNDER SECTION 151 OF THE CIVIL PROCEDURE
CODE**

The Appellants named above most respectfully submitted as under:

1. The Appellants are challenging the order dated 16/11/2022 passed by Learned Single Judge in W.P.No.104320/2022 the appellants prays that the Memorandum of appeal filed may please be read as part and parcel of this application.
2. It is respectfully submitted that, in the above Appeal the Appellants have produced a photocopy of Writ Petition along with Annexures - A to C. are in Kannada language. Hence, the production of English translation of above said Annexure may kindly be dispensed with for 8 weeks.

WHEREFORE, the appellants humbly pray that this Hon'ble Court be pleased to dispense with the production of,

English Translation of Annexures – A TO C.

In the above appeal in the interest of justice and equity.

Place: Dharwad
Dated: 25.03.2025

(MADANMOHAN. M. KHANNUR)
ADDL., GOVERNMENT ADVOCATE
AND
ADVOCATE FOR APPELLANTS/STATE

44

THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
Rep. its Prl. Secretary,
Department of Revenue,
And others.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

VERIFYING AFFIDAVIT

I, P. Pramod S/O Prabakhar Nayar aged about 52 years presently working as the Assistant Commissioner Ballari Sub Division, Ballari District, today at Dharwad, do hereby solemnly affirm and state on oath as follows:

1. In the above Appeal, I am the Appellant No.2 and I have acquainted with the facts of the case from the available records. Hence I am authorized to swear to this Affidavit myself and on behalf of Appellants No.1 & 3.

2. The Statement made in paragraphs 1 & 2 of the **Application for Dispensation** accompanying this affidavit are true to the best of my knowledge.

NO OF CORRECTION

Place: Dharwad

DATED:25.03.2025

NOTARY

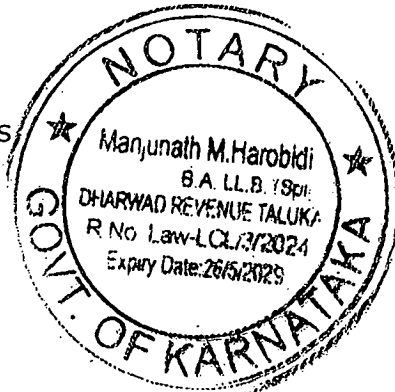
Identified by:

Assistant
O/o Advocate General's
Dharwad.

Nutrial Register.....

Sl. No.....

VI
9664
NOTARY



DEPONENT
(P. PRAMOD)

Solemnly Affirmed before me
by Shri..P. Pramod..
Who is Identified by
Shri..Manish..Swara..
Whom I Know Personelly

M. M. Harobdi
B.A.L.L.B. (3rd)
Advocate & Notary Public
Amogh Siddashwar Nilaya
Near Ganesh Temple
Sangoli Rayanna Nagar, Dharwad

25 MAR 2025

IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

PRESENTATION FORM

WRIT APPEAL NO.....of 2025

District: Ballari

PRESENTED WITH COURT FEE LABELS AS FOLLOWS

Sl. NO.	Particulars	Court fee affixed on the papers	
		Rs.	P.
1.	On Memorandum of Appeal/Petition Application ...		
2.	On the certified copies of judgment and decree ...		
3.	Memo of Appearance ...		
4.	I.A. No.2/2025 for Dispensation of production of Typed Copy. ...	20	00
5.			
6.			
7.	 Total ...	20	00

Number of copies furnished 2 Sets

Advocate for Petitioner/ Respondent Appellant

Clerk
Office of the Advocate-General
For Karnataka, Dharwad

Received Court fee and Stamp
Labels as above

Receiving Clerk

Place: Dharwad
Dated: 25.03.2025

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2025

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
And another.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

INDEX

SL NO	PARTICULARS	PAGE NOs.
1.	Interlocutory Application No.2/2025 for Dispensation of production of Typed Copy.	45-46
2.	Verifying Affidavit	47

Place:Dharwad
Dated: 25.03.2025

(MADANMOHAN. M. KHANNUR)
ADDL., GOVERNMENT ADVOCATE
AND
ADVOCATE FOR APPELLANTS/STATE

45

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2025

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
And another.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

**APPLICATION UNDER SECTION 151 OF THE
CIVIL PROCEDURE CODE**

The Appellants named above most respectfully submitted as under:

1. The Appellants are challenging the order dated 16/11/2022 passed by Learned Single Judge in W.P.No.104320/2022 the appellants prays that the Memorandum of appeal filed may please be read as part and parcel of this application.
2. It is respectfully submitted that, in the above Appeal the Appellants have produced a copy of Writ Petition along with Annexures- A to C are quite legible and readable. Hence, the production of typed copies of above said Annexure may kindly be dispensed with for 8 weeks.

WHEREFORE, the appellants humbly pray that this Hon'ble Court be pleased to dispense with the production of,

Typed Copies of **Annexures – A to C**

In the above appeal in the interest of justice and equity.

Place:Dharwad
Dated: 25.03.2025

(MADANMOHAN. M. KHANNUR)
ADDL., GOVERNMENT ADVOCATE
AND
ADVOCATE FOR APPELLANTS/STATE

47

THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
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And others.

Appellants

AND

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Respondent

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2. The Statement made in paragraphs 1 & 2 of the **Application for Dispensation** accompanying this affidavit are true to the best of my knowledge.

Place: Dharwad
DATED:25.03.2025

Nil.
NO OF CORRECTION

NOTARY

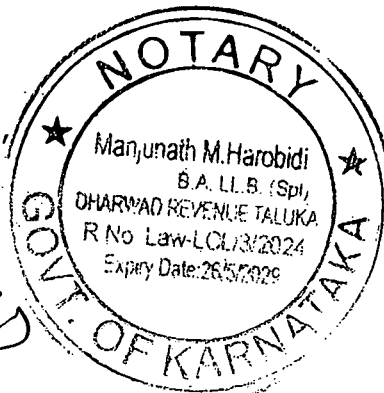
Identified by:

Assistant
O/o Advocate General's,
Dharwad.

Nutrial Register.....

Sl. No.....

VI
9665
NOTARY



DEPONENT
(P. PRAMOD)

Solemnly Affirmed before me
by Shri... P. pramod .
Who is Identified by
Shri... H. S. Sutar
Whom I Know Personally

M. M. Harobidi.

B.A., LL.B. (Spl)
Advocate & Notary Public
Among Siddeshwar Nilaya
Near Ganesh Temple
Bangoli Ravara Near Dharwad

25 MAR 2025

IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

PRESENTATION FORM

WRIT APPEAL NO.....of 2025

District: Ballari

PRESENTED WITH COURT FEE LABELS AS FOLLOWS

Sl. NO.	Particulars	Court fee affixed on the papers	
		Rs.	P.
1.	On Memorandum of Appeal/Petition Application ...		
2.	On the certified copies of judgment and decree ...		
3.	Memo of Appearance ...	20	00
4.	I.A. No.3/2025 for Condonation of Delay. ...		
5.			
6.	 Total ...	20	00
7.			

Number of copies furnished 2 Sets

Advocate for Petitioner/ Respondent Appellant

Clerk
Office of the Advocate-General
For Karnataka, Dharwad

Received Court fee and Stamp
Labels as above

Receiving Clerk

Place: Dharwad
Dated: 25.03.2025

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2025

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
And another.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

INDEX

SL NO	PARTICULARS	PAGE NOs.
1.	Interlocutory Application No.3/2025 for Condonation of Delay.	48-50
2.	Verifying Affidavit	51

Place:Dharwad
Dated: 25.03.2025

(MADANMOHAN. M. KHANNUR)
ADDL., GOVERNMENT ADVOCATE
AND
ADVOCATE FOR APPELLANTS/STATE

**IN THE HIGH COURT OF KARNATAKA DHARWAD
BENCHAT DHARWAD**

**I.A. No. _____/2025
(FOR CONDONATION OF DELAY)**

IN

W. A. No. /2025

**In
W.P.No.104380/2022**

BETWEEN:

1. The State Of Karnataka,
Represented by its Secretary,
Department of Revenue,
Bengaluru-560001.

Respondent No.1/Appellant No.1

2. The Assistant Commissioner,
Ballari Division,
Office of the Assistant Commissioner,
Ballari-583101.

Respondent No.2/Appellant No.2

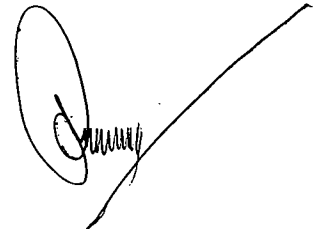
3. The Tahasildar,
Sandur Taluk,
Office of the Tahasildar,
Sandur, District -Ballari-583101.

Respondent No.3/Appellant No.3

AND:

Milapchand S/o Late Jugaraj Jain,
Age: 72 years, Occ: Agriculture and
Business, R/o No.604 'C' Block,
Raheja Park, Magadi Main Road,
Bengaluru-560079.

PETITIONER /RESPONDENT

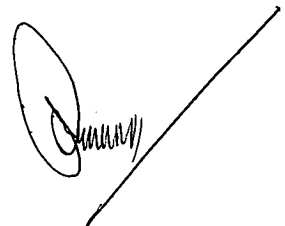


**APPLICATION FILED UNDER SECTION 5 OF
LIMITATION ACT-1963 SEEKING CONDONATION OF
DELAY**

The above named Appellant most respectfully submit as follows;

1. The above Appeal is filed by the Appellants/state against the Order dated 16.11.2022 passed by the learned Single Judge of this Hon'ble High Court in W.P.No.104380/2022 (KLR-RES)

2. It is submitted that, in the above appellants is filed by challenged the order dated 16.11.2022 and certificate the copy was applied on 21.11.2022 and after obtaining the certificate copy of the legal opinion was sent on 25.03.2023. After receipt of the said opinion letter was sent 15.07.2023 for direction to Prl. Secretary regarding for filing of writ appeal. On 29.08.2023 the Prl. Secretary written a letter to Deputy Commissioner Ballary and on 26.09.2023 and 24.07.2024 the Government has sent proposal to Deputy Commissioner Ballari for filing the appeal and in pursuance of the said proposal on 10.12.2024, the Assistant Commissioner appointed as LCO i.e., Government Order



No.RD/131/LRA/2023 Bengaluru dated 04.12.2024 and after that, the persons were sent to file a writ appeal on 23.01.2025 and on work load the appeal was not filed within time. In this process, some delay has occurred in the present case.

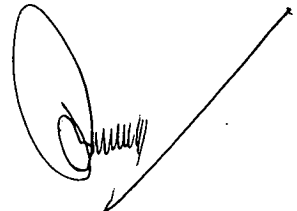
3. It is submitted that, the delay in filing the present appeal is not intentional but due to the reasons stated above.

4. It is submitted that, if the accompanying application is not allowed, the Appellants will be put to untold hardship and on the contrary, if the accompanying application is allowed, the same will not cause any prejudice to the Respondents.

WHEREFORE, it is prayed that this Hon'ble Court be pleased to allow the application for condonation of delay and condone the delay of _____ days in filing the above appeal in the interest of justice and equity

Place: DHARWAD
Date:25.03.2025

(MADHANMOHAN M KANNUR)
ADDL. GOVERNMENT ADVOCATE
AND ADVOCATE FOR APPELLANT/STATE



51

THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
Rep. its Prl. Secretary,
Department of Revenue,
And others.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

VERIFYING AFFIDAVIT

I, P. Pramod S/O Prabakhar Nayar aged about 52 years presently working as the Assistant Commissioner Ballari Sub Division, Ballari District, today at Dharwad, do hereby solemnly affirm and state on oath as follows:

1. In the above Appeal, I am the Appellant No.2 and I have acquainted with the facts of the case from the available records. Hence I am authorized to swear to this Affidavit myself and on behalf of Appellants No.1 & 3.

2. The Statement made in paragraphs 1 to 4 of the **Application for Condonation Of Delay** accompanying this affidavit are true to the best of my knowledge.

Place: Dharwad
DATED:25.03.2025

NO OF CORRECTION

NOTARY

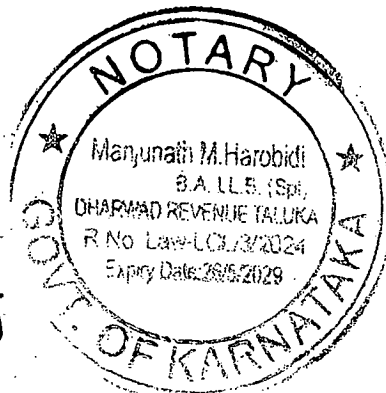
DEPONENT
(P. PRAMOD)

Identified by:

Assistant
O/o Advocate General's,
Dharwad.

Nutrial Register.....
Sl. No.....

NOTARY



Sworn Before Me

NOTARY
M. M. HAROBIDI,
B.A., LL.B. (Spl)
Advocate & Notary
Sangalli Rayanna Nagar, Dharwad

25 MAR 2025

IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

AT DHARWAD

PRESENTATION FORM

WRIT APPEAL NO.....of 2025

District: Ballari

PRESENTED WITH COURT FEE LABELS AS FOLLOWS

Sl. NO.	Particulars	Court fee affixed on the papers	
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1.	On Memorandum of Appeal/Petition Application ...		
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3.	Memo of Appearance ...		
4.	I.A. No.4/2025 for Stay. ...	20	00
5.			
6.	 Total ...	20	00
7.			

Number of copies furnished 2 Sets

Advocate for Petitioner/ Respondent Appellant

Clerk
Office of the Advocate-General
For Karnataka, Dharwad

Received Court fee and Stamp
Labels as above

Receiving Clerk

Place: Dharwad
Dated: 25.03.2025

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2025

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
And another.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

INDEX

SL NO	PARTICULARS	PAGE NOs.
1.	Interlocutory Application No.4/2025 for Stay .	52-54
2.	Verifying Affidavit	55

Place:Dharwad
Dated: 25.03.2025

(MADANMOHAN. M. KHANNUR)
ADDL., GOVERNMENT ADVOCATE
AND
ADVOCATE FOR APPELLANTS/STATE

52

**IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH AT DHARWAD**

I.A. No. _____/2025

(FOR STAY)

IN

WRIT APPEAL NO. _____/2025

In

W.P.No. 104380/2022 (KLR-CON)

BETWEEN:

Milapchand S/o late Jugaraj Jain

APPELLANT

AND:

The State of Karnataka,
And others.

RESPONDENT

**APPLICATION FOR STAY FILED UNDER ORDER XLI
RULE 5 READ WITH SECTION 151 OF CIVIL
PROCEDURE CODE**

The above named Appellant most respectfully submit
as follows:

1. It is submitted that the above appeal is filed by
the Appellant/state challenging the order dated
16.11.2022 passed by the learned Single Judge in
W.P.No.104380/2022 (KLR-CON) by the learned Single
Judge.

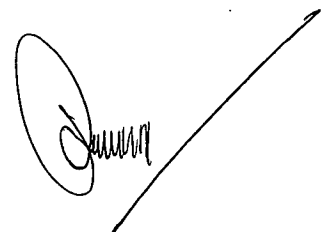


2. It is further respectfully submit that, the averments made in the accompanying memorandum of appeal may be read as part and parcel of the present application to avoid repetition.

3. It is respectfully submitted that, the appellants herein have sought various grounds before the Learned Single Judge, the same was not considered and the writ petition came to be allowed and the appellants herein have good case on merits.

4. I state that, the impugned order is illegal and not sustainable and the Respondent is making hectic efforts for implementation of the order dated 16.11.2022. Hence, the applicants are entitled for interim stay and if the Stay is not granted there will be multiplicity of proceedings and if the application is allowed no hardship will be caused to the other side, on the other hand, if the application is not allowed, the State will put to great hardship.

WHEREFORE, the appellants herein prays to this Hon'ble Court to allow the application by Staying the Judgment passed by the Learned Single Judge in



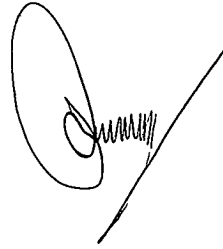
54

W.P.No.104380/2022 order dated 16.11.2022 in the
interest of justice and equity.

Place: Dharwad
Dated: 25.03.2025

(MADHANMOHAN M KANNUR)
ADDL. GOVERNMENT ADVOCATE
AND ADVOCATE FOR APPELLANT/STATE

srg

A handwritten signature in black ink, consisting of a large, stylized 'M' followed by a series of vertical strokes and a diagonal line extending upwards and to the right.

**THE HIGH COURT OF KARNATAKA DHARWAD BENCH
AT DHARWAD**

WRIT APPEAL NO. /2023

IN

WRIT PETITION NO.104320/2022(KLR-RES)

BETWEEN:

The State of Karnataka,
Rep. its Prl. Secretary,
Department of Revenue,
And others.

Appellants

AND

Milapchand S/o Late Jugaraj Jain,

Respondent

VERIFYING AFFIDAVIT

I, P. Pramod S/O Prabakhar Nayar aged about 52 years presently working as the Assistant Commissioner Ballari Sub Division, Ballari District, today at Dharwad, do hereby solemnly affirm and state on oath as follows:

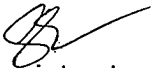
1. In the above Appeal, I am the Appellant No.2 and I have acquainted with the facts of the case from the available records. Hence I am authorized to swear to this Affidavit myself and on behalf of Appellants No.1 & 3.

2. The Statement made in paragraphs 1 to 4 of the **Application for Stay** accompanying this affidavit are true to the best of my knowledge.

Place: Dharwad

DATED:25.03.2025

Identified by:


Assistant
O/o Advocate General's,
Dharwad.

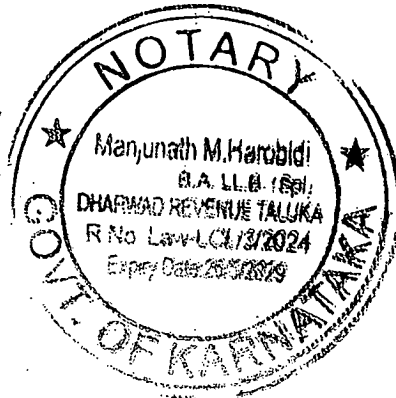
Nutrial Register.....
9667

Sl. No.....
NOTARY

NO OF CORRECTION

NOTARY

DEPONENT
(P. PRAMOD)



Sworn Before Me

NOTARY

M. M. HAROBIDI,
B.A., LL.B. (Spl)
Advocate & Notary
Sangolli Rayanna Nagar, Dharwad

25 MAR 2025